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#	Case Name	Tentative
2.	2026-1545921 King Shin Ship Management Co. vs. Beyond Loan 1 LLC	Plaintiff King Shin Ship Management Co., Limited's ("Plaintiff") application for right to attach order and order for issuance of writ of attachment after hearing, against defendant Beyond Liquidity, LLC ("Defendant"), is denied. <u>Procedural Issues</u> The Court declines to consider the new evidence Plaintiff submitted on reply. (See ROA 94.) Absent exceptional circumstances, new evidence is generally not allowed on reply, because of the "unfairness to the opponent of not being able to address the new matter raised in a reply." (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 227; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:106.1.) Additionally, the new evidence has not been sufficiently authenticated. (Evid. Code, § 1400.) The Court declines to rule on Defendant's evidentiary objections (ROA 92), because they are not material to the disposition of the application. <u>Merits</u>

		Plaintiff moves, under CCP section 483.010, for the issuance of a writ of attachment against Defendant in the amount of \$100,000.00. Defendant proffers evidence that Debenture No. 2 includes an arbitration provision, which provides, in relevant part, that “any claim, dispute, or controversy of whatever nature arising out of or relating to this Debenture, including, without limitation, any action or claim based on tort, contract, or statute . . . shall be resolved by final and binding arbitration ... before a single arbitrator ... selected from and administered by JAMS Inc.” (ROA 85—Ye Decl. at ¶ 3, Exh. 1 [Debenture No. 2 at § 15].) Additionally, Defendant has filed a motion to compel arbitration and to stay proceedings. (ROA 67.) Defendant contends Plaintiff has failed to meet the standard required for obtaining provisional relief when a dispute is subject to arbitration. CCP section 1281.8 provides, in relevant part, that: “A party to an arbitration agreement may file in the court in the county in which an arbitration proceeding is pending, <i>or if an arbitration proceeding has not commenced</i>, in any proper court, an application for a provisional remedy in connection with an arbitrable controversy, <i>but only upon the ground that the award to which the applicant may be entitled may be rendered ineffectual without provisional relief</i>.” (Code Civ. Proc., § 1281.8, subd. (a), emphasis added.) There is no dispute that Defendant is in the process of selling certain real property in Texas and intends to use the proceeds to repay its creditors. Plaintiff has not shown that the arbitration award to which it may be entitled would be “rendered ineffectual” without provisional relief. The application is denied without prejudice to Plaintiff seeking renewal if such facts can be stated. Defendant shall give notice of the ruling.
3.	2021-1231301 Gulham vs. Younge	The Court grants Cross-Defendant Yama Gulham’s unopposed Motion for judgment on the pleadings as to the third cause of action for malicious prosecution in Cross-Complainants Michael A. Younge and Amany Simmonds’ Cross-Complaint. Younge and Simmonds have 15 days leave to amend. Younge and Simmonds take issue with the lack of any meet and confer effort. But the statute contains no provision for compelling compliance with the meet and confer requirement, unlike the meet and confer requirement in the discovery process. Additionally, the failure to sufficiently meet and confer is not grounds to grant a motion for judgment on the pleadings. (CCP §439(a)(4). “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for